

Court No. - 29

Case :- WRIT - C No. - 40029 of 2018

Petitioner :- Hem Singh

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Shashank Kumar, Vinod Kumar Yadav

Counsel for Respondent :- C.S.C., Shashank Kumar

Hon'ble Pankaj Mithal, J.

Hon'ble Pankaj Bhatia, J.

Heard learned counsel for the petitioner and Sri Shyam Singh Yadav, learned counsel for respondent no. 4.

The petitioner is aggrieved by the recovery certificate dated 2.8.2018 by which a sum of Rs. 1,70,813/- plus miscellaneous expenses are sought to be recovered from him as electricity dues.

Learned counsel for the petitioner submits that the petitioner is ready and willing to make the payment provided some facility of payment in installment is granted.

Section 6.14 of the Electricity Supply code, 2005 provides for the installment facility.

In view of the aforesaid provision and the submission of learned counsel for the petitioner, we dispose of the writ petition with the direction to the petitioner to deposit a sum of Rs 50,813/- within a period of one month from today. On the payment of the aforesaid amount, the recovery proceedings against the petitioner of the balance amount shall remain in abeyance provided petitioner deposits balance amount of Rs. 1,20,000/- in four equal installments of Rs. 30,000/- each to be paid by 10th of February, 2019, 10th of April 2019, 10th of June 2019 and 10th of August 2019. The last installment shall include the miscellaneous charges and any other amount that may accrue in the meantime.

In the event of default, in payment of any of the installments, the stay order would come to an end automatically and it will be open for the respondents to proceed with the recovery and to recover the aforesaid amount in accordance with law.

The petition is disposed of .

Order Date :- 6.12.2018

SKS